CAROLINE NJEKE
versus
JEMIAS NJEKE N.O
(In his capacity as executor of estate late of the
late Eliphas Ndide Njeke)
and
THE MASTER OF THE HIGH COURT

HIGH COURT OF ZIMBABWE
TSANGA J
HARARE; 18 June 2025

Unopposed Application (Motion Court)

S Chihombe, for the Applicant

TSANGA J:

The applicant is the daughter of the late Eliphas Njeke, who died on 2 April 1999. She has approached this Court seeking the removal of her sibling, the first respondent, as co-executor in the administration of the deceased estate, DR No. 1752/12. The Master is cited in his official capacity as the authority responsible for the administration of deceased estates. In addition to being an executor, the applicant avers that she is also a beneficiary of the estate. She approaches the Court under the common law.

At the time of his death in 1999, the deceased left behind nine children from three different wives. The applicant and the first respondent are among those children, although they were born of different mothers. The deceased's estate consisted of one immovable property, namely Stand No. 1591, 224th Street, Kuwadzana 2, Harare.

The estate was not immediately registered following the deceased's death. Instead, in 2012, the first respondent registered the estate under DR No. 1752/12 without the knowledge of the other beneficiaries, save for two of his immediate siblings and their mother. Letters of administration were issued in his favour.

In August 2014, the first respondent applied for a peace order against the applicant and also sought her eviction from the deceased's property. The application was dismissed. During those proceedings, the Magistrate enquired whether the deceased's estate had been registered. The first respondent indicated that it had not. The applicant likewise believed that the estate had not been registered, although the first respondent knew that it had already been registered in 2012.

The applicant and her other siblings subsequently sought to register the estate in 2014 under DR No. 1752/14, and the applicant was appointed executor. In 2016, when she attended at the Kuwadzana Council District Offices to submit estate administration documents, she was informed that the property had already been sold. The applicant and her siblings then approached the Master's Office and discovered that the estate had in fact been registered in 2012 by the first respondent using falsified information. The sale of the property was subsequently set aside by this Court.

The applicant further avers that the first respondent was charged, prosecuted, and convicted by the Harare Magistrates' Court for fraud. She attached proof of his conviction. The fraud charges arose from misrepresentations allegedly made to the Master and from forged documents submitted by the first respondent in the purported execution of his duties as executor.

On these grounds, the applicant contends that the first respondent is not a fit and proper person to continue holding office as executor of the Estate Late Eliphas Njeke. She argues that he has demonstrated a lack of *bona fides* and that he has failed to conduct himself in a manner that protects the interests of the estate and its beneficiaries. According to the applicant, the letters of administration issued in his favour were used to advance his own interests at the expense of other legitimate beneficiaries.

The applicant further accuses the first respondent of displaying hostility and aggression towards estate beneficiaries whose interests he is duty-bound to protect. She contends that his conduct demonstrates duplicity and disloyalty to the estate. She emphasises that there has been an irretrievable breakdown of trust between the first respondent and the beneficiaries, which justifies his removal from office. She further avers that his continued tenure as executor is likely to prejudice the future welfare and proper administration of the estate, which he is jointly required to protect and control.

The record reflects that he was served with the application on 27 March 2023, as evidenced by the certificate of service. Although the Master has been cited as a respondent, no response has been filed on behalf of that office. In her heads of argument, the applicant submits that her recourse to the Court under the common law is preserved by section 117 of the Administration of Estates Act, as amended in 2024.

THE LAW

The applicant in this instance has approached the court under common law and it is for this court to determine whether removal is justified on common-law principles. A common judicial principle is that the welfare of the estate and the interests of beneficiaries are paramount. Thus, the court's common-law power is exercised when necessary to protect those interests and ensure the due administration of the estate. See *Katirawu* v *Katirawu* 2007 (2) ZLR 64.

Of significance is that the common law power to approach the court on the removal of an executor is now firmly ensconced in the Administration of Estates Act [*Chapter 6:01*] as amended in 2024. The relevant provision now provides as follows:

> **"117 Removal of executor, tutor or curator from office**
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> (1) This section does not deprive any interested party of the right under the common law to initiate action for the removal of an executor, tutor or curator on the ground that his or her continuance in office is prejudicial to the interests of the estate in respect of which the executor, tutor or curator was appointed."

The existence of the statutory mechanism does not extinguish the pre-existing common-law right. It is a classic saving clause meaning that Parliament did not intend the statutory procedure to replace or exhaust the court's pre-existing jurisdiction. Section 117(2) then also sets out removal by the Master in the event that the removal is by the Master. It reads as follows:

> "(2) If the Master, on his or her own motion, and after making due inquiry in terms of section 116, is of the opinion that the an executor, tutor or curator ought to be removed from his or her office on the ground—
> a) that he or she was not qualified for appointment to such office or that his or her appointment was for any other reason illegal; or
> b) that he or she has failed to perform satisfactorily any duty or requirement imposed upon him or her by or in terms of any law; or
> c) that he or she is mentally or physically incapable of performing satisfactorily his duties; or
> that such person is no longer suitable to hold such office then the Master shall proceed in accordance with this section."

Section 117 (2) therefore outlines an additional mechanism through which the Master may seek removal, while leaving intact the broader common-law remedy available to interested parties. Under s117(2) the Master, on his or her own motion, and after making due inquiry in terms of section 116, may form the opinion that the an executor, tutor or curator ought to be removed from his or her office. The grounds are specified. The procedure to be followed by the Master is laid out is s 117 (3) to (6).

Section 117 was substituted by section 9 of Act 3 of 2024. Previously it did not capture the common law position. It merely outlined the grounds upon which the Master could act. It also did not capture the detailed procedural steps once the Master takes statutory action as it now does.

The two provisions, that is s117 (1) and (2), are clearly distinguishable in that they establish two distinct routes for the removal of an executor, tutor, or curator. The first is under common law and this route is initiated by an interested party and the second route is the statutory route initiated by the Master. In s 117 (1) which provides that: "This section does not deprive any interested party of the right under the common law to initiate action for the removal of an executor..." what the legislature is saying is that the statutory procedure is not exclusive. The legislature deliberately preserved parallel remedies. It expressly rejected exclusivity.

In other words, the statutory provisions do not deprive any interested party of the right under the common law to initiate action for the removal of an executor, tutor or curator. The consequence is that a beneficiary, heir, creditor, co-executor, or any other interested person may approach the court directly and seek removal on the common-law ground that the executor's continuance in office is prejudicial to the interests of the estate in respect of which the executor, tutor or curator was appointed. The common-law remedy is concurrent, not subordinate. An interested party does not have to complain to the Master or wait for the Master to investigate; and rely on the Master's application under subsection (3). Instead, subsection (1) expressly preserves a direct right of action. Therefore, where a beneficiary alleges that the executor's continued office is harming the estate, they may proceed under the common law even if the Master has not acted under subsection (2). The statutory procedure under s 117 (2) provides an additional, structured mechanism (especially via the Master), but it does not exclude the court’s common-law jurisdiction. An interested party may still approach the court directly under the common law where they can show that the executor’s continuation is prejudicial to the estate. The common-law remedy is not merely a gap-filler; it

is a legislatively preserved, independent route that co-exists with the statutory removal procedure.

Factual analysis

The issue for determination is whether the first respondent should be removed from office as executor of the Estate Late Eliphas Njeke under the common law.

An executor occupies a fiduciary office and is required to administer an estate with utmost good faith, honesty, impartiality and diligence. The office is one of trust. The court retains an inherent common-law power under s 117 (1) to remove an executor where his conduct demonstrates unfitness for office or where his continued presence is likely to prejudice the proper administration of the estate and the interests of beneficiaries. The guiding consideration is not the punishment of the executor but the welfare of the estate.

The facts before the court reveal conduct that goes beyond mere disagreement between beneficiaries and an executor. The first respondent registered the estate in 2012 without the knowledge of most beneficiaries and thereafter obtained letters of administration in his favour. More significantly, when the applicant sought to protect her interests in 2014, the first respondent represented that the estate had not been registered when he knew that it had already been registered. Such conduct demonstrates a lack of candour incompatible with the duties imposed upon an executor.

The conduct of the first respondent culminated in the sale of the estate's sole immovable property. That sale was subsequently set aside by this court. While the setting aside of the sale is itself indicative of irregularities in the administration of the estate, the matter does not end there. The applicant has produced evidence that the first respondent was criminally charged, prosecuted and convicted of fraud arising from misrepresentations and forged documents submitted in the course of administering the estate. The conviction is of particular significance because it relates directly to the manner in which the first respondent exercised the powers entrusted to him as executor.

A conviction for fraud committed in the administration of an estate strikes at the very foundation of the fiduciary relationship that must exist between an executor, the beneficiaries and the Master. An executor who has been found by a criminal court to have acted fraudulently in relation to estate affairs cannot readily be said to possess the honesty, integrity and trustworthiness required for the office. The court cannot ignore the fact that the

misconduct was not peripheral to the administration of the estate but arose directly from the execution of his duties.

The applicant also alleges a complete breakdown of trust between the beneficiaries and the first respondent. Ordinarily, a loss of confidence on its own would not justify removal. Beneficiaries cannot dictate who should hold office merely because relations have become strained. However, where that loss of confidence is founded upon proven acts of fraud, dishonesty and misrepresentation, it becomes entirely justified. In such circumstances, the court would be slow to compel beneficiaries to continue entrusting the administration of estate assets to a person whose conduct has already been judicially found to be fraudulent.

The court must also consider the future welfare of the estate. The estate remains subject to administration and distribution among several beneficiaries. The first respondent's prior conduct demonstrates a willingness to place his personal interests above those of the estate and other beneficiaries. His continued tenure creates a real risk of further disputes, prejudice to beneficiaries and impairment of the proper administration of the estate.

In the circumstances, the court is satisfied that the first respondent has demonstrated conduct inconsistent with the fiduciary obligations of an executor. The fraud conviction, coupled with the setting aside of the sale of estate property and the proven misrepresentations made during the administration of the estate, establish that he is no longer a fit and proper person to hold office. The interests of the estate and its beneficiaries require that he be removed.

Accordingly, good cause has been shown for the removal of the first respondent as executor of Estate DR No. 1752/12 under the common law. It is for these reasons that I have granted the order for removal as prayed in the application.

TSANGA J:……..

Messrs Saunyama Dondo; Applicant's Legal Practitioners